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U.S. Department of State Diplomacy in Action

Laos

Country Reports on Human Rights Practices
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The Lao People's Democratic Republic is an authoritarian, Communist, one-party state ruled by the Lao People's Revolutionary Party (LPRP). The country has an estimated population of 5.9 million. Although the 1991 constitution outlines a system composed of executive, legislative, and judicial branches, in practice the LPRP continued to control governance and the choice of leaders at all levels through its constitutionally designated "leading role." The most recent national assembly election was held in February 2002. In March 2002 the National Assembly reelected the president and vice president and ratified the president's selection of a prime minister and cabinet. The LPRP generally maintained effective control of the security forces, but elements of the security forces on occasion acted outside the LPRP's authority.

The government's human rights record remained poor, and it continued to commit serious abuses. The following human rights problems were reported:

- denial of the right of citizens to change their government
- abuse of detainees, especially those suspected of insurgent or antigovernment activity
- civilian casualties resulting from conflicts between security forces and insurgents
- prisoner abuse and harsh prison conditions
- arbitrary arrest, detention, and surveillance
- lengthy pretrial detention and incommunicado detention
- a corrupt judiciary subject to external influence
- infringement on privacy rights
- restrictions on freedom of speech, the press, assembly, and association
- restrictions on freedom of religion
- restrictions on freedom of movement
- societal discrimination against women and minorities
- trafficking in women and children
- restriction of some worker rights

RESPECT FOR HUMAN RIGHTS

Section 1 Respect for the Integrity of the Person, Including Freedom From:

a. Arbitrary or Unlawful Deprivation of Life

The government or its agents did not commit any politically motivated killings. In December Aloun Voraphom, a Protestant pastor in Bolikhamsai Province, was killed in Pak Kading District following a Christmas church service. Police believed that Aloun had been robbed and then killed; however, at year's end no suspects had been arrested. Although there was nothing to implicate the authorities in Aloun's killing, some members of the religious community, aware that he had previously been arrested and served more than a year in prison for his religious activities, believed that police or government authorities may have been involved in his death.

Clashes between insurgent and military forces resulted in an unknown number of deaths of civilians, insurgents, and military forces. During the year insurgents reported increased military pressure from Lao People's Army (LPA) forces against their encampments in Bolikhamsai, Xieng Khouang, Luang Prabang, and Vientiane provinces as well as the Saisomboun Special Zone. According to insurgent reports, these attacks resulted in dozens of deaths and injuries of men, women, and children living in the encampments; however, the veracity of this information could not be established.

There were no new developments regarding the government's investigation of the killing of five ethnic Hmong children, allegedly by members of the LPA, in the Saisomboun Special Zone in May 2004. The government formally denied any involvement of security forces in the death of the teenagers and characterized the incident as a fabrication.

There were no developments in the cases of persons allegedly killed by police, including the 2004 case of an ethnic Hmong man, Khoua Lee Her, who reportedly died while incarcerated in Houaphanh Province, and the 2003 case of a former policeman in Attapeu Province who had converted to Christianity.

In January suspected ethnic Hmong seeking to create a separate Hmong state ambushed a police-military convoy in Houaphanh Province, killing five policemen and soldiers as well as five civilians.

During the year there was a small explosion at a technical college in Vientiane. There was no information regarding who was responsible for the bomb. There also were a small number of reports of planned bombings by exile antigovernment groups.

b. Disappearance

There were no reports of politically motivated disappearances during the year. There were no developments in the case of Cher Wa Yang, an ethnic Hmong schoolteacher who disappeared in January 2004 from the Saisomboun Special Zone.

c. Torture and Other Cruel, Inhuman, or Degrading Treatment or Punishment

The law prohibits the beating or torture of an arrested person. In practice members of the police and security forces sometimes abused prisoners, especially those suspected of associations with the insurgency; however, there were anecdotal reports that abuse has decreased in recent years. In the past detainees sometimes were subjected to beatings and long-term solitary confinement in completely darkened rooms, and in many cases they were detained in leg chains or wooden stocks for long periods. Former inmates reported that degrading treatment, the chaining and manacling of prisoners, and solitary confinement in small unlit rooms were standard punishments in larger prisons, while smaller provincial or district prisons employed manacles and chains to prevent prisoners from escaping.

Prison and Detention Center Conditions

Prison conditions varied widely but in general were harsh and on occasion life threatening. Prisoners in larger, state-operated facilities in Vientiane generally fared better than those in provincial prisons. Over the last several years the Office of the Prosecutor General (OPG) had some success in bringing about improved conditions in these larger facilities, including better treatment by guards. In all facilities food rations were minimal, and most prisoners relied on their families for subsistence. Most larger facilities allowed prisoners to grow supplemental food in small vegetable gardens. Prison wardens set prison visitation policies. Consequently, in some facilities families could make frequent visits, but in others visits were severely

restricted. Credible reports indicated that ethnic minority prisoners and some foreign prisoners were treated particularly harshly. Former prisoners reported that incommunicado detention was used as an interrogation device and against perceived problem prisoners; however, there have been fewer reports of its use in recent years.

Although most prisons had some form of clinic, usually with a doctor or nurse on staff, medical facilities were extremely poor, and in practice medical treatment for serious ailments was unavailable. In some facilities prisoners could arrange treatment in outside hospitals if they could pay for the treatment and the expense of a police escort.

Prisons held both male and female prisoners, although they were placed in separate cells.

In some prisons juveniles were housed with adult prisoners. International organizations opposed the government's plan to construct a separate facility to serve juvenile detainees, arguing that juveniles would best be kept in segregated sections of adult prisons located close to their homes and families. Most juveniles were in detention for narcotics offenses or petty crimes. Rather than send juveniles to prisons, authorities used drug treatment facilities as holding centers for juvenile offenders. While conditions in treatment facilities were generally better than those in prisons, conditions were nevertheless Spartan and lengths of detention indefinite.

The government has provided limited access to some detention facilities to UN and nongovernmental organization (NGO) personnel monitoring the status of juveniles in the prison system, and it has given representatives of foreign governments limited access to provincial prisons. However, the government did not permit independent monitoring of prison conditions. The International Committee of the Red Cross (ICRC) continued its longstanding efforts to establish an official presence in the country to carry out its mandate of monitoring prison conditions, but at year's end the government had not granted the ICRC's request.

d. Arbitrary Arrest or Detention

The law prohibits arbitrary arrest and detention; however, in practice the government did not respect these provisions, and arbitrary arrest and detention persisted.

Role of the Police and Security Apparatus

The Ministry of Public Security (MoPS) maintains internal security but shares the function of state control with the Ministry of Defense's security forces and with party and popular fronts (broad-based organizations controlled by the LPRP). The Ministry of Foreign Affairs, with MoPS support, is responsible for oversight of foreigners. The MoPS includes local police, traffic police, immigration police, security police (including border police), and other armed police units. Communication police are responsible for monitoring telephone and electronic communications. The armed forces are responsible for external security but also have domestic security responsibilities that include counterterrorism and counterinsurgency activities as well as control of an extensive system of village militias.

Police corruption was a problem. Many police officers used their authority to extract bribes from citizens. Government sanctions against corrupt officials reportedly were employed only rarely to punish official wrongdoers. There was no formal mechanism for investigating police abuse. In theory the government's National Audit Committee has responsibility for rooting out corruption in all government ministries, including the Ministry of Public Security, but in practice the office's investigative activities were minimal. Lower-level officials were on occasion arrested and punished for corruption. For example, during the year a policeman and a prosecutor were arrested in Bokeo Province for their alleged complicity in drug trafficking.

Police are trained at the National Police Academy, but the extent to which the academy's curriculum discusses corruption was unknown. At the instruction of the LPRP, the government-controlled press only rarely reported cases of official corruption.

Arrest and Detention

Both police and the armed forces had powers of arrest, although normally only police carried out these powers. There were reports that military forces occasionally arrested or detained persons suspected of insurgent activities. Police reportedly sometimes used arrest as a means of intimidation or to extract bribes. Police exercised wide latitude in making arrests, relying on exceptions to the requirement for arrest warrants for persons in the act of committing a crime or for "urgent" cases. To search a property, police must obtain a written search warrant from the public prosecutor or the court, except "in an emergency," in which case police may search without a warrant but must inform the prosecutor within 24 hours after the search is done.

There is a one-year statutory limit for detention without trial. The length of detention without a pretrial hearing or formal charges by law also is limited to one year. The OPG reportedly made efforts to ensure that all prisoners were brought to trial within the one-year limit, but these limits sometimes were ignored. The OPG must authorize police to hold a suspect pending investigation. Authorization is given in three-month increments, and under law a suspect must be released after a maximum of one year if police do not have sufficient evidence to bring charges. There is a bail system, but its implementation was arbitrary and in practice often amounted to a bribe to prison officials for a prisoner's release. Access to family members and a lawyer was not assured. Incommunicado detention was a problem; however, it was used less frequently than in the past (see section 1.c.). A statute of limitations applies to most crimes. In practice alleged violations of criminal laws have led to lengthy pretrial detentions without charge and minimal due process protection of those detained. Authorities sometimes continued to detain prisoners after they had completed their sentences, particularly in cases where prisoners were unable to pay court fines.

During the year Lao authorities arrested approximately 35 Christians for their efforts to practice their religion, including importing religious material, constructing a church without authorization, and refusing to give up their religious beliefs when ordered by local officials. In March authorities in Phine District, Savannakhet Province, detained 24 ethnic Brou Christians and held them at the district police headquarters for several days until most members of the group agreed to cease their religious activities. However, two of the men refused and were detained until police brought charges against them. In June or July the men were tried and convicted on charges of "illegal weapons trafficking." In September five ethnic Khmu Protestants were arrested at the Lao-Thai Friendship Bridge for attempting to import Bibles. They were released after several days' detention. In October police in Bokeo Province arrested six Protestants who had constructed a small church structure and held church services without authorization. The leader of the six, a lay pastor named Somsack, became ill while imprisoned. He was released but died shortly afterward in hospital. The five other detainees were released in late December. In recent years most religious detainees were released shortly after their arrest, but the detentions often had a negative effect on religious activity of local Christian communities. At year's end there were no untried religious detainees.

According to reports, police continued to arrest without charges persons suspected of involvement with the insurgency. In June security forces arrested four foreign citizens who were on hand to witness the surrender of a group of insurgent families in Xieng Khouang Province as they returned to Vientiane. Police released three of the four after several days' detention, and the fourth person was released a week later. No charges were filed, but police claimed the four had "distorted the truth and created misunderstandings" regarding the event.

There were no reports that police administratively overruled court decisions by detaining exonerated individuals. Reportedly, local police at times continued to detain persons who had been ordered released by higher authorities. There were no known instances of police being reprimanded or punished for such behavior. The OPG has made efforts to encourage compliance with the law regarding detention of suspects but acknowledged that police widely continued to ignore these provisions.

Based on information provided by former prisoners, a small but unknown number of persons, particularly those suspected of insurgent activities, were detained for allegedly violating criminal laws concerning national security.

e. Denial of Fair Public Trial

The law provides for the independence of the judiciary and the OPG; however, senior government and party officials influenced the courts, although to a lesser degree than in the past. Impunity was a problem, as was corruption. Reportedly, some judges could be bribed. The National Assembly Standing Committee, whose members are elected by the assembly, appoints judges for life terms. The National Assembly may remove judges from office for "impropriety." According to government sources, since 1991 only one judge at the district level has been removed for improper behavior.

The people's courts have four levels: district courts, municipal and provincial courts, the court of appeals, and the Supreme People's Court. In 2004 the Supreme Court established a commercial court, family court, and juvenile court. During the year these courts began functioning at the provincial, appellate, and supreme court levels. Decisions of the lower courts are subject to review by the Supreme Court, but military court decisions are not. Both defendants and prosecutors in civilian courts have the right to appeal an adverse verdict. There are instances in which civilians may be tried in the military courts, but this was rare.

Trial Procedures

The law provides for open trials in which defendants have the right to defend themselves with the assistance of a lawyer or other person. The law requires that authorities inform persons of their rights. The law states that defendants may have anyone assist them in preparing a written case and accompany them at their trial; however, only the defendant may present oral arguments at a criminal trial. The Lao Bar Association, with a membership of nearly 50 attorneys, is nominally independent but receives some direction from the Ministry of Justice. Its members are private attorneys that court litigants may select for trials. For several reasons, including a lack of funds, shortage of attorneys, and general perception that attorneys cannot affect court decisions, most defendants did not have attorneys or trained representatives. Court judges, not juries, decide guilt or innocence. Trials that involve some criminal laws relating to national security, state secrets, children under the age of 16, or certain types of family law are closed. Under the law defendants enjoy a presumption of innocence. However, in practice judges usually decided a defendant's guilt or innocence in advance, basing their decisions on the result of police or prosecutor's office investigation reports. Reliance on these reports created a presumption that the defendant was guilty. Most trials were little more than pro forma examinations of the accused, with a verdict having been reached beforehand. Most criminal trials ended in convictions.

Most of the country's 450 judges had only basic legal training, and many provincial and district courts had few or no reference materials available to which judges could refer for guidance. The National Assembly's Legal Affairs Committee occasionally reviewed supreme court decisions for "accuracy" and returned cases to the court or the OPG for review when it believed decisions were reached improperly.

In 2003 police in Xieng Khouang Province arrested two foreign journalists, their foreign interpreter, and their three ethnic Hmong porters on charges of having conspired with ethnic Hmong villagers in the killing of a local militia villager. The three Hmong were given long prison sentences. One later escaped, but the other two remained in custody at year's end.

Political Prisoners

In addition to the unknown number of short- and long-term political detainees (see section 1.d.), there were five known political prisoners. A former government official arrested in 1975, Colonel Sing Chanthakoumane, was serving a life sentence after a 1990 trial that was not conducted according to international standards. Sing reportedly was very ill, but the government did not respond to numerous requests to release him on humanitarian grounds. In March a second former government official, Major Pangthong Chokbengboun, sentenced to life imprisonment at the same time as Colonel Sing, died in detention. Reportedly Major Pangthong died as a result of serious illnesses, including diabetes, that camp guards refused to allow to be treated. At least 2 persons arrested in 1999 for attempting to organize a prodemocracy demonstration in Vientiane continued to serve 10-year sentences for antigovernment activities. The status of two others remained unclear at year's end: some sources claimed they had been released, while others maintained they were still in jail.

Other political prisoners may have been arrested, tried, and convicted under laws relating to national security that prevent public court trials; however, there was no reliable independent method to ascertain accurately their total number.

f. Arbitrary Interference With Privacy, Family, Home, or Correspondence

The government limited citizens' privacy rights through a vast surveillance network. Security laws allow the government to monitor individuals' private communications (including e-mail and cell phones) and movements.

The law prohibits unlawful searches and seizures; however, police at times disregarded constitutional requirements to safeguard citizens' privacy, especially in rural areas. By law police must obtain search authorization from a prosecutor or court, but in practice police did not always obtain prior approval. The law generally protects privacy, including that of mail, telephone, and electronic correspondence, but the government apparently violated these legal protections at times.

MoPS monitored citizens' activities; in addition an informal militia in urban and rural areas, operating under the aegis of the military, had responsibility for maintaining public order and reporting "undesirable elements" to police. The militia usually were more concerned with petty crime and instances of moral turpitude than with political activism, although in remote rural areas where the insurgency was active, the militia also played a role in providing security against insurgents and robbers. Members of the LPRP's many front organizations, including the Lao Women's Union, the Youth Union, and the Lao Front for National Construction (LFNC), served as watchdogs over the citizenry at all levels of society. MoPS also maintained a network of secret police whose job was to monitor the citizenry to prevent acts threatening the government.

The government monitored the e-mails of private citizens but to an unknown extent. All Internet service providers were licensed by the government and were required to report quarterly to the Internet Committee of the Prime Minister's Office regarding their activities.

The government continued its program to relocate highland slash-and-burn farmers, most of whom belong to ethnic minority groups, to lowland areas, in keeping with its plan to end opium production by the end of the year and slash-and-burn agriculture by 2010. In some areas district and provincial officials used persuasion to convince villagers to move to relocation areas. In other areas villagers relocated spontaneously to be closer to roads, markets, and government services. Although the government's resettlement plan called for compensating farmers for lost land and providing resettlement assistance, this assistance was not available in many cases or was insufficient to give relocated farmers the means to adjust to their new homes and new way of life. Moreover, in some areas farmland allocated to relocated villagers was of poor quality and unsuited for intensive rice farming. The result was that some relocated villagers experienced increased poverty, hunger, malnourishment, susceptibility to disease, and increased mortality rates. The government relied on assistance from NGOs, bilateral donors, and international organizations to cover the needs of those recently resettled, but such assistance was not available in all areas.

In January authorities in Ban Kokpho Village, Bolikhamsai Province, forced 104 ethnic Khmu Christians to leave the province. According to some witnesses, the villagers were expelled for their religious beliefs; however, local authorities claimed the villagers had settled in the area illegally and had elected to return to their original homes. The villagers were removed in military vehicles to Vientiane City, where their plight came to the attention of central government representatives, who forced Bolikhamsai officials to allow them to return to their village.

The government allowed citizens to marry foreigners only with prior approval. Premarital cohabitation was illegal. Although the government routinely granted permission to marry, the process was lengthy and burdensome and offered officials the opportunity to solicit bribes. Marriages to foreigners without government approval could be annulled, with both parties subject to arrest or fines.

Section 2 Respect for Civil Liberties, Including:

a. Freedom of Speech and Press

The law provides for freedom of speech and of the press; however, the government severely restricted political speech and writing in practice. The government also prohibited most criticism that it deemed harmful to its reputation. The law forbids slandering the state, distorting party or state policies, inciting disorder, or propagating information or opinions that weaken the state. Citizens who lodged legitimate complaints with government departments generally did not suffer reprisals, but criticism of a more general nature or targeting the leadership could lead to censure or arrest.

The state owned and controlled most domestic print and electronic media. Local news in all media reflected government policy. Television talk shows and opinion articles referred only to differences in administrative approaches. Although domestic television and radio broadcasts were closely controlled, the government made no effort to interfere with television and radio broadcasts from abroad. In practice many citizens routinely watched Thai television or listened to Thai radio, including news broadcasts. Citizens had 24-hour access to CNN and the BBC as well as other international stations accessible via satellite and cable television. The government required registration of receiving satellite dishes and a one-time licensing fee for their use, largely as a revenue-generating scheme, but otherwise made no effort to restrict their use. In addition a Chinese-owned company provided cable television service to subscribers in Vientiane. This government-registered cable service offered Thai and international news and entertainment programs without restriction from authorities. The government permitted the publication of several privately owned periodicals of a nonpolitical nature, including periodicals specializing in business, society, and trade topics. A few Asian and Western newspapers and magazines were available through private outlets that had government permission to sell them.

Foreign journalists must apply for special visas and were restricted in their activities. The authorities did not allow journalists free access to information sources, but journalists often were allowed to travel without an official escort. When escorts were required, journalists had to pay a daily fee for their services. As chair of the Association of Southeast Asian Nations (ASEAN), the government established special streamlined procedures for foreign journalists covering ASEAN-related events, such as the summit in November 2004 and the regional forum in July. These procedures required journalists to register with the Ministry of Foreign Affairs if they wished to report stories other than the ASEAN meetings.

Authorities prohibited the dissemination of materials deemed indecent, subversive of national culture, or politically sensitive. Any person found guilty of importing a publication deemed offensive to the "national culture" faced a fine or imprisonment for up to one year. A 2002 decree on religious practice permits the publication of religious material with permission from the LFNC. In practice, although several religious groups sought such permission, at year's end no Christian or Baha'i groups had received authorization to publish religious materials (see section 2.c.).

Films and music recordings produced in government studios must be submitted for official censorship; however, uncensored foreign films and music were easily available in video and compact disc format. The Ministry of Information and Culture repeatedly attempted to impose restrictions aimed at limiting the influence of Thai culture in Lao music and entertainment. These restrictions were widely ignored and appeared to have little effect.

The government controlled all domestic Internet servers and occasionally blocked access to Internet sites that were deemed pornographic or were critical of government institutions and policies. The government also sporadically monitored e-mail (see section 1.f.). Highly restrictive regulations regarding Internet use by citizens significantly curtailed freedom of expression. "Disturbing the peace and happiness of the community" and "reporting misleading news" are criminal acts. The Prime Minister's Office requires all Internet service providers to submit quarterly reports and link their gateways to facilitate monitoring, but the government's ability to enforce such regulations was limited. Fearful of monitoring by the authorities, many citizens used the Internet services of a growing number of Internet cafes rather than personal computers for private correspondence.

The law provides for academic freedom; however, the government restricted it, although over the past several years it has relaxed restrictions in certain areas. Curriculum in schools, including private schools and colleges, was tightly controlled by the Ministry of Education to ensure that no subjects are taught that might raise questions about the political system. The government relaxed these restrictions somewhat in the case of private colleges, allowing teachers greater latitude in their courses of instruction. Both citizen and noncitizen academic professionals conducting research in the country may be subject

to restrictions on travel, access to information, and publication. The government exercised some control over the ability of state-employed academic professionals to travel for research or obtain study grants, but it actively sought such opportunities worldwide and approved virtually all such proposals.

b. Freedom of Peaceful Assembly and Association

Freedom of Assembly

The law provides for freedom of assembly; however, the government restricted this right in practice. The law prohibits participation in an organization for the purpose of demonstrations, protest marches, or other acts that cause "turmoil or social instability." Such acts are punishable by a prison term from one to five years. Defendants tried for crimes against the state could face sentences of up to 20 years or possible execution.

Freedom of Association

The law provides citizens the right to organize and join associations, but the government restricted this right in practice. The government registered and controlled all associations and prohibited associations that criticized the government. Political groups other than popular front organizations approved by the LPRP were forbidden. Although the government restricted many types of formal professional and social associations, informal nonpolitical groups met without hindrance. The government has allowed the creation of some associations of a business nature, such as allowing hotel owners and freight forwarders to create their own business associations. The government also began permitting the establishment of nonprofit organizations designed to promote science and agriculture. The Prime Minister's Office oversees the small but growing body of organizations that have registered to conduct activities in these areas.

c. Freedom of Religion

The law provides for freedom of religion; however, the authorities, particularly at the local level, interfered with this right.

Two members of the Lao Evangelical Church, Nyoht and Thongchanh, sentenced in 1999 for treason and sedition to 12 years and 15 years, respectively, remained in prison at year's end.

Although the state is secular, the LPRP and the government monitored Theravada Buddhism, which was followed by more than 40 percent of the population and was the faith of nearly all of the ethnic Lao population. The law does not recognize a national religion, but the government's support for and oversight of temples and other facilities and its promotion of Buddhist practices gave Buddhism an elevated status among the country's religions.

The constitution prohibits "all acts of creating division of religion or creating division among the people." The LPRP and the government used this to justify restrictions on religious practice by all religious groups, including practices of the Buddhist majority and of animists. Although official pronouncements acknowledged the positive benefits of religion, they also emphasized its potential to divide, distract, or destabilize. The constitution notes that the state "mobilizes and encourages" Buddhist monks and novices as well as priests of other religions to participate in activities "beneficial to the nation and the people."

Authorities continued to be suspicious of non-Buddhist religious communities, including some Christian groups, in part because these faiths did not share Theravada Buddhism's high degree of direction and incorporation into the government structure. In the past some authorities criticized Christianity in particular as a Western or imperialist "import." Local authorities, apparently in some cases with encouragement from government or LPRP officials, singled out Protestant groups as a target of abuse. Protestant churches' rapid growth since the early 1990s, contact with religious groups abroad, aggressive proselytizing on the part of some members, and independence of central government control contributed to government and Communist Party suspicion of the churches' activities.

The 2002 decree on religion permits minority religious groups to engage in a number of activities previously considered illegal, such as proselytizing and printing religious material; however, it requires religious groups or individuals to obtain permission in advance for these activities, in most cases from the LFNC. Although the intent of the decree is to clarify the rights and responsibilities of religious groups, many minority religious leaders complained that it was too restrictive in practice. The requirement that religious groups obtain permission, sometimes from several different offices, for a broad range of activities greatly limited the freedom of these groups.

The LFNC has recognized two Protestant groups: the Lao Evangelical Church (LEC), which is the umbrella Protestant church, and the Seventh-day Adventist Church. Nominally, all Protestant congregations in the country belonged to one of these two organizations, although in practice some congregations operated independently.

In most parts of the country, members of long-established congregations had few problems in practicing their faith, although long-time congregations in some parts of Savannakhet and Luang Prabang provinces continued to face restrictions from local authorities. Most incidents of harassment of Christian congregations took place in areas where Christianity had only recently spread. The authorities sometimes advised new congregations to join other religious groups with similar historical roots, despite clear differences between the groups' beliefs. In some areas, such as Luang Prabang and Xieng Khouang provinces, independent congregations were ordered to return to the LEC or face sanctions, including arrests of their leaders. In other areas, however, authorities allowed congregations not affiliated with the LEC or Seventh-day Adventists to continue their worship unhindered.

The government's tolerance of religion varied by region. The LFNC often sought to intervene with local governments in cases where minority religious practitioners, particularly Christians, had been harassed or mistreated; however, incidents of religious intolerance by local officials continued in some areas. Although officials in a few urban areas--notably Vientiane City, Savannakhet, and Pakse--were relatively tolerant of Christian religious practice, government authorities in many regions restricted the practice of properly registered religious groups. During the year officials in Savannakhet Province's Muang Phine District arrested and detained religious believers without charges, apparently as a means of forcing them to change their religious beliefs (see section 1.d.). Authorities in other areas used threats of arrest as a means of intimidating local religious communities. Local officials in some parts of the country also threatened to withhold government identification cards and household registers and deny educational benefits to those who did not give up their religious beliefs.

The Roman Catholic Church was unable to operate effectively in the northern part of the country and had only intermittent contact with the bishop of Luang Prabang, who lived in Vientiane. The small Catholic communities in Luang Prabang, Sayaboury, and Bokeo provinces sporadically held services in members' homes, but there were no priests in the area, and pastoral visits from Vientiane were infrequent. However, the government granted permission for a Catholic community in Sayaboury Province to construct a new church. In December the bishop of Vientiane announced the scheduled ordination of the country's first new priest in 30 years. However, authorities did not allow the ordination to proceed, claiming the Church had not obtained the necessary authorization from provincial authorities. Government officials stated the ordination had only been "postponed," but at year's end it had not taken place.

During the year local authorities arrested or detained approximately 35 Christians in Savannakhet and Bokeo provinces and in Vientiane City. The five Christians arrested at the Friendship Bridge in September were released within days, as were most of those arrested in Savannakhet Province. However, two men arrested in Savannakhet were tried and convicted of weapons trafficking charges. Three of those arrested in Bokeo Province in October remained under detention, without being charged, at the end of the year (see section 1.c.). Most of those detained were released within a few days, but two men were brought to trial and eventually convicted of weapons trafficking (see section 1.c.). Members of the two men's religious community regarded their arrest and conviction to be motivated by local officials' desire to force the men to renounce their faith.

Followers of the Baha'i Faith were able to practice their religion without hindrance in Vientiane City, but in Savannakhet and Khammouane provinces small Baha'i groups continued to face restrictions from local authorities. The small Muslim community in Vientiane, made up almost exclusively of foreign nationals, was able to practice its religion without hindrance.

Animists generally experienced no interference from the government in their religious practices, which varied extensively among the approximately 70 identified ethnic groups and tribes in the country. However, the government actively discouraged animist practices that it regarded as outdated, unhealthful, or illegal, such as the practice in some tribes of infanticide of infants born with birth defects or of keeping the bodies of deceased relatives in homes.

Officials in Savannakhet continued to refuse requests by the Christian congregation in the village of Khamsan for the return of their church building, seized by authorities several years earlier. In October officials in Bokeo Province burned a bamboo church building built by local Protestants and arrested six leaders of the church. The church community had requested permission from village officials to construct a church; when permission was not forthcoming, the leaders of the congregation proceeded to build the church without permission. Both the church burning and the arrests were apparently in retaliation for this action. In several areas authorities continued to deny requests by local congregations to construct permanent church buildings but in other areas permitted the construction or renovation of churches. Authorities in some parts of the country used intimidation or threats of expulsion to force Christians to renounce their religious faith, particularly in parts of Savannakhet, Bolikhamsai, and Luang Prabang provinces (see section 1.f.).

Officials in some areas reportedly were suspicious of persons who converted to Christianity, but during the year there were no reports of the harassment or arrest of recent converts.

The government strictly prohibited foreigners from proselytizing, although it permitted foreign NGOs with religious affiliations to work in the country. Foreign persons who distribute religious material may be arrested or deported. Although the 2002 decree permits proselytizing by religious practitioners provided they obtain permission for such activities from the LFNC, the LFNC did not grant such permission, and persons found evangelizing risked harassment or arrest.

The government permits the printing, import, and distribution of Buddhist religious material, but it made no such concessions to the printing or import of religious material and literature by non-Buddhist faiths. The 2002 decree authorizes the printing of religious material, provided permission is obtained from the LFNC, but the LFNC did not grant permission to Christian congregations. The government required and usually granted permission for formal links with coreligionists in other countries; however, in practice the distinction between formal and informal links was unclear, and relations with coreligionists generally were established without difficulty.

Societal Abuses and Discrimination

For the most part, the various religious communities coexisted amicably. There was no known Jewish community in the country, and there were no reports of anti-Semitic acts.

For a more detailed discussion, see the [2005 International Religious Freedom Report \(/2009-2017.state.gov/j/drl/rls/irf/2005/\)](https://2005-2017.state.gov/j/drl/rls/irf/2005/).

d. Freedom of Movement Within the Country, Foreign Travel, Migration, and Repatriation

The law provides for these rights, but in practice the government restricted some of them. Citizens who traveled across provincial borders are not required to report to authorities; however, in designated security zones, roadblocks and identity card checks of travelers were conducted occasionally. Citizens who sought to travel to contiguous areas of neighboring countries could do so with travel permits that generally were easily obtained from district offices. Those wishing to travel farther abroad were required to apply for passports and exit visas. The government usually issued these documents for a fee, but officials at the local level denied permission to apply for passports and exit visas to some persons seeking to emigrate. Authorities restricted access by foreigners to certain areas, such as the Saisomboun Special Zone, an area administered by military forces, or remote districts in Xieng Khouang and Bolikhamsai provinces, where antigovernment insurgents continued to operate.

The government did not use forced exile; however, a small group of persons, who fled the country during the 1975 change in government and were tried in absentia for antigovernment activities, did not have the right of return.

Protection of Refugees

The law provides for asylum and the protection of stateless persons, but the country is not a signatory to the 1951 UN Convention relating to the Status of Refugees or its 1967 protocol. In practice the government did not provide protection against *refoulement*, the return of persons to a country where they feared persecution, and did not routinely grant refugee or asylum status. However, the government has shown some flexibility in dealing pragmatically with individual asylum cases.

In the years following their return, former refugees were subject to greater scrutiny by the authorities than were other citizens. However, these returnees have largely reintegrated and no longer receive unusual attention from officials. Many who fled after the 1975 change of government have returned to visit relatives, some have stayed and gained foreign resident status, and some have reclaimed citizenship successfully.

The Office of the UN High Commissioner for Refugees (UNHCR) has requested permission to reestablish a presence in the country to monitor the reintegration of former refugees who returned under UNHCR's resettlement program. However, the government has refused the request, stating that the UNHCR's mandate has expired and all former refugees have been successfully reintegrated.

In November Thai authorities in Petchaboon Province arrested a group of 29 ethnic Hmong, most of them teenage girls, who had fled to Thailand and were living in Petchaboon Province. Subsequent reports indicated that most of these Hmong were sent to Laos by Thai immigration authorities in early December. However, Lao authorities refused to acknowledge the presence of this group. At year's end the location and fate of this group were unknown, with some sources reporting that they were in jail in Vientiane and others that they were detained in Bolikhamsai Province.

Section 3 Respect for Political Rights: The Right of Citizens to Change Their Government

Citizens do not have the right to change their government. Although the constitution outlines a system composed of executive, legislative, and judicial branches, the LPRP controlled governance and the leadership at all levels through its constitutionally designated "leading role."

Elections and Political Participation

The law provides for a representative national assembly, elected every five years in open, multiple-candidate, fairly tabulated elections, with voting by secret ballot and universal adult suffrage. However, it legitimizes only a single party, the LPRP; all other political parties are outlawed. Election committees, appointed by the National Assembly, must approve all candidates for local and national elections. Candidates need not be LPRP members, but in practice almost all were.

The National Assembly chooses a Standing Committee, generally based on the previous Standing Committee's recommendation. Upon the committee's recommendation, the National Assembly elects or removes the president and vice president. The committee has supervision of administrative and judicial organizations and the sole power to recommend presidential decrees. It also appoints the National Election Committee, which has powers over elections, including approval of candidates. Activities of the Standing Committee were not fully transparent.

The National Assembly, upon the president's recommendation, elects the prime minister and other ministers of the government. The 109-member National Assembly, elected in February 2002 under a system of universal suffrage, approved the LPRP's selection of the president at its inaugural session in March 2002, and in the same session it ratified the president's selection of a new prime minister and cabinet. The National Assembly may consider and amend draft legislation, but only permanent subcommittees of the assembly may propose new laws. The law gives the right to submit draft legislation to the Standing Committee and the ruling executive structure.

There were 22 women in the 109-member National Assembly and 3 women in the 53-member LPRP Central Committee were women, 1 of whom was also a member of the 7-member Standing Committee in the National Assembly. There were no women in the politburo or the Council of Ministers.

There were 9 Lao Soung (highland dwelling tribes) and 19 Lao Theung (mid-slope dwelling tribes) in the National Assembly. Most members of the assembly were ethnic Lao, who also dominated the upper echelons of the LPRP and the government. Three cabinet ministers were members of ethnic minority groups.

Government Corruption and Transparency

There was a widespread public perception that many officials within the executive and judicial branches of the government were corrupt. Wages of all government officials were extremely low, and many officials, such as police members, had broad powers that they could easily abuse. During the year the National Assembly passed an anticorruption law with provisions that government officials declare their assets. The government also transferred a small number of high-ranking officials, especially at the province level, who were found to be corrupt. However, the LPRP's measures to suppress all information that would lead the population to conclude the Party was flawed ensured that there was no public censure of corrupt officials who were also party members.

There are no laws providing for public access to government information, and in general the government closely guarded the release of any information pertaining to its internal activities, deeming such secrecy necessary for "national security."

Section 4 Governmental Attitude Regarding International and Nongovernmental Investigation of Alleged Violations of Human Rights

There were no domestic nongovernmental human rights organizations, and the government does not have a formal procedure for registration. Any organization wishing to investigate and publicly criticize the government's human rights policies would face serious obstacles, if it were permitted to operate at all.

The government only sporadically responded in writing to requests for information on the human rights situation from international human rights organizations; however, the government maintained human rights dialogues with two foreign governments and continued to receive training in UN human rights conventions from several international donors.

The government maintained contacts with the ICRC, and government officials and military officers have received ICRC training on human rights law and the Geneva Conventions. The government continued to translate international human rights and humanitarian law conventions with ICRC support. Since the closing of the UNHCR office in 2001, the government has not permitted UNHCR personnel to conduct monitoring visits to the country.

A human rights unit in the Ministry of Foreign Affairs' Department of International Treaties and Legal Affairs has responsibility for investigating allegations of human rights violations. The Foreign Ministry on occasion responded to inquiries from the UN regarding its human rights situation.

The government permitted limited access by international organizations and NGOs to provide food assistance to former insurgents who had accepted government resettlement offers.

Section 5 Discrimination, Societal Abuses, and Trafficking in Persons

The constitution provides for equal treatment under the law for all citizens without regard to sex, social status, education, faith, or ethnicity. The government at times took action when well-documented and obvious cases of discrimination came to the attention of high-level officials, although the legal mechanism whereby a citizen may bring charges of discrimination against an individual or organization was neither well developed nor widely understood among the general population.

Women

There were reports that domestic violence against women occurred, although it did not appear to be widespread. Spousal abuse is illegal. Rape reportedly was rare. In cases of rape that were tried in court, defendants generally were convicted with penalties ranging from three years' imprisonment to execution. Spousal rape is not illegal.

Trafficking in women and girls for prostitution was a problem (see section 5, Trafficking). Prostitution is illegal, with penalties ranging from three months to one year in prison.

Sexual harassment was rarely reported, but the actual extent was difficult to assess. Although sexual harassment is not illegal, "indecent sexual behavior" toward another person is illegal and punishable by six months' to three years' imprisonment.

The law provides for equal rights for women, and the Lao Women's Union operated nationally to promote the position of women in society. The family code prohibits legal discrimination in marriage and inheritance. Discrimination against women was not generalized; however, varying degrees of traditional, culturally based discrimination persisted, with greater discrimination practiced by some hill tribes. Many women occupied responsible positions in the civil service and private business, and in urban areas their incomes were often higher than those of men.

In recent years the government increased support for development programs designed to improve the position of women in society, including in the political system. In late 2004 the National Assembly passed a new Law on Women, with antitrafficking provisions as well as provisions protecting women and children from domestic violence. The law also establishes penalties for crimes against women that are significantly more severe than those contained in the criminal code. The law defines trafficking and violence against women and children as criminal actions and provides for the protection of victims internally and by international agencies. The law closely follows provisions of the UN Convention on the Elimination of Discrimination Against Women and the Convention on the Rights of the Child.

Children

Although the government has made children's education and health care a priority in its economic planning, funding for children's basic health and educational needs was inadequate, and the country had a very high rate of infant and child mortality. Education is free and compulsory through the fifth grade; however, high fees for books and supplies and a general shortage of teachers in rural areas prevented many children from attending school. According to government statistics, 80 percent of primary school-age children, 50 percent of junior high school-age children, and approximately 25 percent of high school-age children were enrolled in school; however, the UN Development Program estimated that almost 40 percent of children did not attend school at all and only 10 percent entered secondary school. There was a significant difference in the treatment of boys and girls in the educational system: female literacy was 48 percent versus 70 percent for males; however, men and women attended the national university in approximately equal numbers.

The law prohibits violence against children, and violators were subject to stiff punishments. Reports of the physical abuse of children were rare.

Trafficking in girls for prostitution and forced labor was a problem (see section 5, Trafficking). Other forms of child labor generally were confined to family farms and enterprises (see section 6.d.).

Trafficking in Persons

The law prohibits abduction and trade in persons as well as detaining persons against their will, procuring persons for commercial sex, and prostitution; however, trafficking in persons, particularly women and children, was a problem. In late 2004 the National Assembly passed a law on women that includes provisions protecting women and children from trafficking and domestic violence and imposes stiff penalties on traffickers (see section 5, Women).

The country was primarily a country of origin for trafficking in persons and, to a much lesser extent, a country of transit. The primary destination country was Thailand. There was almost no effective border control. There was little reliable data available on the scope and severity of the problem until recently, when studies indicated that the scale of economic emigration, mostly by young persons between the ages of 15 and 30, was far greater than previously supposed. Approximately 7 percent of the total sample population in 3 southern provinces migrated, either seasonally or permanently, and approximately 55 percent were female. Thai authorities estimated that at least 180 thousand undocumented Lao worked in Thailand. An unknown number of these persons were actually trafficked in some sense of the term. The studies suggested that it was not the most impoverished who were likely to emigrate but rather better-educated peasants with some knowledge of life in Thailand. According to one study, a very small number of female citizens were trafficked to China to become brides for Chinese men.

The majority of trafficking victims have been lowland Lao, although small numbers of highland minority women have also been victimized by traffickers. Minority groups were particularly vulnerable because they do not have the cultural familiarity or linguistic proximity to Thai that Lao-speaking workers can use to protect themselves from exploitative situations. A much smaller number of trafficked foreign nationals, especially Burmese and Vietnamese, transited through the country.

Many labor recruiters in the country were local persons with cross-border experience and were known to the trafficking victims. For the most part, they had no connection to organized crime, commercial sexual exploitation, or the practice of involuntary servitude, but their services usually ended once their charges reached Thailand, where more organized trafficking operations operated.

There were few reports of official involvement in trafficking; however, anecdotal evidence suggested that local officials knew of trafficking activities, and some may have profited from them.

To date the government has prosecuted only a handful of traffickers, according to available information. All were prosecuted under other criminal statutes, prior to the implementation of antitrafficking provisions of the 2004 Law on Women. The government has established an antitrafficking police unit to investigate human trafficking cases and cooperated closely with police in Thailand to investigate specific trafficking cases involving Thai traffickers. Police occasionally arrested both citizens and foreigners for having sexual relations outside of marriage, which is prohibited under the law. Sexual relations with foreigners are forbidden under what the government refers to as a "special law."

The government has become actively involved in countering the worst forms of trafficking and the exploitation of underage persons, chiefly through cooperation with international NGOs working on trafficking problems. The government signed a Memorandum of Understanding with Thailand to increase cross-border cooperation on trafficking, and it also was a member of the Coordinated Mekong Ministerial Initiative Against Trafficking process.

The Ministry of Labor and Social Welfare (MLSW) has a unit devoted to children with special needs, including protection of trafficking victims and prevention of trafficking. The MLSW also maintains a small-scale repatriation assistance center for returned victims of trafficking, but the unit's effectiveness was limited by a small budget, inadequate international assistance, and a lack of trained personnel. The MLSW opened a second center for trafficking victims, funded by The Asia Foundation, the Japanese government, and the UN Children's Fund (UNICEF). The MLSW and the Lao Women's Union conducted pilot studies on antitrafficking information campaigns and began to pursue more active interventions in conjunction with NGOs. Financial constraints limited the contributions the government could make, but it offered the services of ministerial personnel and venues to NGOs doing antitrafficking work.

The Lao Women's Union and the Youth Union, both party-sanctioned organizations, offered educational programs designed to educate girls and young women regarding the schemes of recruiters for brothels and sweatshops in neighboring countries and elsewhere. These organizations were most effective in disseminating information at the grassroots level.

In the past some trafficking victims were punished for improper documentation or for crossing the border illegally. In September 2004 MoPS prohibited the practice of fining returning trafficking victims for illegal border crossing, and the Law on Women also prohibits the practice. With support from UNICEF, the National Commission for Mothers and Children

continued an active program of support for victims.

Persons with Disabilities

The constitution provides citizens protection against discrimination but does not specify that these protections apply to persons with disabilities. Regulations promulgated by the MLSW and the Lao National Commission for the Disabled protect such persons against discrimination; however, the regulations lack the force of law. The law does not mandate accessibility to buildings or government services for persons with disabilities, but the MLSW has established regulations regarding building access and some sidewalk ramps in Vientiane.

National/Racial/Ethnic Minorities

The law provides for equal rights for all minority citizens, and there is no legal discrimination against them; however, societal discrimination persisted. Moreover, critics have charged that the government's resettlement program for ending slash-and-burn agriculture and opium production has adversely affected many ethnic minority groups, particularly in the north. The program requires that resettled persons adopt paddy rice farming and live in large communities, ignoring their traditional livelihoods and community structures. The program has led to an active debate among international observers about whether the benefits of resettlement promoted by the government--access to markets, schools, and medical care for resettled persons--outweigh the negative impact on traditional cultural practices.

Less than half the population is ethnic Lao, also called "lowland Lao." Most of the remainder, approximately 60 percent, is a mixture of at least 47 distinct upland hill tribes whose members, if born in the country, are citizens. There were also ethnic Vietnamese and Chinese minorities and a small community of South Asian origin, particularly in urbanized areas. The law provides a means for foreigners to acquire citizenship, and each year some foreigners, mostly Vietnamese and Chinese, do so. The government encouraged the preservation of minority cultures and traditions; however, due to their remote location and inaccessibility, minority tribes had little voice in government decisions affecting their lands and the allocation of natural resources.

The Hmong are one of the largest and most prominent highland minority groups. There were a number of Hmong officials in the senior ranks of the government and LPRP, including at least five members of the LPRP Central Committee. However, societal discrimination continued against the Hmong (as well as other ethnic minorities), and some Hmong believe their ethnic group cannot coexist with the ethnic Lao population. This belief has fanned separatist or irredentist beliefs among some Hmong. In recent years the government focused limited assistance projects in Hmong areas to address regional and ethnic disparities in income. The government also provided for Hmong and Khmu language radio broadcasts.

The increased number of attacks by Hmong insurgents against civilian and military targets, coupled with the outbreak of a localized uprising in Houaphanh Province in 2003 and again in January, intensified ethnic tensions and aroused the government leadership's suspicion of Hmong irredentist desires. The heightened security problems also resulted in increased efforts by security forces to eliminate scattered pockets of insurgents living in remote jungle areas (see section 1.a.).

For several years the government has had a vaguely defined policy of giving resettlement assistance and "amnesty" to insurgents who surrender to authorities. At least partially in response to charges that it was trying to kill all insurgent elements, the government used family members of insurgents still living in the forest and former insurgents to approach these groups to urge them to surrender. Throughout the late 1990s and early 2000s, small groups accepted this offer and received small amounts of resettlement assistance from the government, especially in Vientiane, Bolikhamsai, and Xieng Khouang provinces and in the Saisomboun Special Zone. In some areas, such as in Bolikhamsai, this amnesty program included job training, land, and equipment for farming. However, in some cases this assistance was less than had been promised. Moreover, because of their past activities, amnestied insurgents continued to be the focus of government suspicion and scrutiny. The government generally refused offers from the international community to assist these surrendered insurgents directly, but it allowed some aid from the UN and other international agencies to reach them as part of larger assistance programs (see section 2.d.).

In June a group of approximately 170 persons, mostly women and children, associated with the insurgency surrendered to authorities in Xieng Khouang Province. Prior to the group's surrender, other insurgent bands also indicated their intention to turn themselves in to authorities. However, the arrest of four foreigners who traveled to Xieng Khouang to witness the surrender of this first group apparently had a chilling effect on other groups' intentions to surrender, and the anticipated mass surrenders of insurgents did not materialize. Nevertheless, there were reports of scattered surrenders of smaller groups, usually consisting of one or two families, subsequent to this event.

The government promised food, medicine, and resettlement assistance to insurgents who surrendered (see section 1.a.). The government initially refused international organizations permission to visit the 170 persons who surrendered in June or provide them with food and assistance, but after several months it allowed limited internationally donated food aid to reach them. The government also permitted international organizations to provide assistance to former insurgent families who surrendered in early 2004 and were resettled in Xieng Khouang Province's Muang Mok District.

The constitution states that foreigners and stateless persons are protected by "provisions of the laws," but in practice they did not enjoy the rights provided in the constitution.

Other Societal Abuses and Discrimination

Within lowland Lao society, there was wide and growing tolerance of homosexual practice, although societal discrimination persisted.

There was no official discrimination against persons with HIV/AIDS, but social discrimination existed. The government actively promoted tolerance of those with HIV/AIDS, and during the year it conducted awareness campaigns to educate the population and promote understanding toward such persons.

Section 6 Worker Rights

a. The Right of Association

Under the law labor unions may be formed in private enterprises as long as they operate within the framework of the officially sanctioned Federation of Lao Trade Unions (FLTU), which in turn is controlled by the LPRP. However, most of the FLTU's approximately 99 thousand members worked in the public sector.

The government employed the majority of salaried workers, although this situation was changing as the government privatized state enterprises and otherwise reduced the number of its employees. Subsistence farmers made up an estimated 85 percent of the work force.

b. The Right to Organize and Bargain Collectively

There is no right to organize and bargain collectively. The labor code stipulates that disputes be resolved through workplace committees composed of employers, representatives of the local labor union, and representatives of the FLTU, with final authority residing in the MLSW. According to NGOs and embassies based in Vientiane, the law generally was not enforced by the MLSW, especially in dealings with joint ventures in the private sector. Labor disputes reportedly were infrequent. According to labor activists the FLTU needs government permission to enter factories and must provide advanced notice of such visits; the FLTU is in effect powerless to protect workers who filed complaints. The government sets wages and salaries for government employees, while management sets wages and salaries for private business employees.

Strikes are not prohibited by law, but the government's ban on subversive activities or destabilizing demonstrations (see section 2.b.) made strikes unlikely, and none were reported during the year.

The labor code stipulates that employers may not fire employees for conducting trade union activities, lodging complaints against employers about labor law implementation, or cooperating with officials on labor law implementation and labor disputes, and there were no reports of such cases. Workplace committees were one mechanism used for resolving complaints, but there was no information on how effective these committees were in practice.

There are no export processing zones.

c. Prohibition of Forced or Compulsory Labor

The labor code prohibits forced labor except in time of war or national disaster, during which time the state may conscript laborers. The code also prohibits forced or compulsory labor by children; however, there were reports that such practices occurred (see sections 5 and 6.d.).

d. Prohibition of Child Labor and Minimum Age for Employment

Under the labor code children under age 15 may not be recruited for employment, except to work for their families, provided the work is not dangerous or difficult. Many children helped their families on farms or in shops, but child labor was rare in industrial enterprises. Some garment factories reportedly employed a very small number of underage girls. The Ministries of Public Security and Justice are responsible for enforcing these provisions, but enforcement was ineffective due to a lack of inspectors and other resources.

e. Acceptable Conditions of Work

The daily minimum wage was approximately \$0.40 (4 thousand kip), which was insufficient to provide a decent standard of living for a worker and family. Most civil servants received inadequate pay. Some piecework employees, especially on construction sites, earned less than the minimum wage.

The law provides for a workweek limited to 48 hours (36 hours for employment in dangerous activities) and at least 1 day of rest per week.

The law provides for safe working conditions and higher compensation for dangerous work. Employers are responsible for compensating a worker injured or killed on the job, a requirement generally fulfilled by employers in the formal economic sector. The law also mandates extensive employer responsibility for those disabled while at work, and it was enforced adequately. Although workplace inspections reportedly have increased over the past several years, the MLSW lacked the personnel and budgetary resources to enforce the labor code effectively. The labor code has no specific provision allowing workers to remove themselves from a dangerous situation without jeopardizing their employment.

There were a number of illegal immigrants in the country, particularly from Vietnam and China, and they were vulnerable to exploitation by employers. Some illegal immigrant Vietnamese children sold goods on the streets of Vientiane, although the government made some effort to stop this practice.

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